

2016 SCC OnLine All 2320

In the High Court of Allahabad

(BEFORE V.K. SHUKLA, A.C.J. AND MAHESH CHANDRA TRIPATHI, J.)

Smt. Shanti Devi Petitioner

v.

Managing Director, Pashichhamanchal Vidhut Vitran
and Anr. Respondents

Writ - C No. - 32193 of 2016

Decided on July 18, 2016

Counsel for Petitioner:- Sudhakar Singh

Counsel for Respondent:- Pranjal Mehrotra

ORDER

1. In the present case this much is reflected that electricity connection of petitioner has been disconnected and aggrieved against the same petitioner is before this Court.

2. This much is clear from the record in question and it is being submitted by the petitioner that from the date electricity connection has been accorded in her favour not even a single bill has been raised and, accordingly, payment in question has not been made. Once accepted position is that electricity has been consumed by the petitioner and it is being contended that no bill in question has been raised, then disconnection is inevitable, in case, payment has not been made as consumer cannot be permitted to use the electricity without there clearance of bills in question.

3. Once such is the factual situation, then as far as we are concerned, we are not at all interfering in the matter but certainly petitioner should get her dispute resolved, as is provided for under the Electricity Act, 2003 alongwith U.P. Electricity Supply Code, 2005.

4. Writ petition is *dismissed*, accordingly.

5. This order has been passed with the due assistance of Sri. Pranjal Mehrotra, Advocate.

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